

M/s Bharti Retail Ltd. v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 4 June 2012 · Writ-C No. 29231 of 2012 · **Writ disposed; licensee to specify formalities and decide the 65 KW sanction in accordance with law, merits left open.**

HEADNOTE

Without deciding whether M/s Bharti Retail Ltd. was entitled to a 65 KW connection, the High Court disposed of the writ by directing the petitioner to file a fresh representation, the licensee to state remaining formalities within a week, the petitioner to complete them in ten days, and the licensee then to decide the sanction application in accordance with the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

M/s Bharti Retail Ltd. sought sanction of a 65 KW load for its premises at Khasra No. 54/1M, Mandaiyan Nagar Bagh, Tehsil Sadar, Rampur. It alleged that the distribution licensee had not sanctioned the connection in accordance with the U.P. Electricity Supply Code, 2005, and that the delay was disrupting day-to-day working. The writ sought a direction to respondent no. 3 to pass an appropriate order on the pending application. Counsel for the Power Corporation asked for a short time to consider the claim.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

delay in sanction of 65 KW connection

HOLDING

Complaint of delay in sanctioning a 65 KW connection under the Supply Code, 2005, was disposed of without examining entitlement: the petitioner may file a fresh representation with a certified copy; respondent no. 3 must within one week of receipt specify remaining formalities; the petitioner has ten days from that letter to complete them; and respondent no. 3 must then decide the claim in accordance with law, preferably within ten days of receiving the completed papers. ¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy Without deciding whether M/s Bharti Retail Ltd. was entitled to a 65 KW connection, the High Court disposed of the writ by directing the petitioner to file a fresh representation, the licensee to state remaining formalities within a week, the petitioner to complete them in ten days ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO SANCTION OF 65 KW LOAD

Court expressly declined to comment on entitlement and left the licensee to decide in accordance with law. ¶ 1